

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Jewel Ortiz, :

: Index Number:
Date Purchased:
Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer John Migliaccio, Shield 25698 of PSA 7, :
Police Officer Mike Suarez, Shield 5841 of PSA 7 and :
New York City Police Officers John Doe, :

: Plaintiff's residence is:
950 East 176 Street
Bronx, NY 10460

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: March 11, 2021
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 236-1007

To: City of New York

New York City Police Department

Police Officer John Migliaccio, Shield 25698 of PSA 7

Police Officer Mike Suarez, Shield 5841 of PSA 7

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Jewel Ortiz,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer John Migliaccio, Shield 25698 of PSA 7,	:	
Police Officer Mike Suarez, Shield 5841 of PSA 7 and	:	
New York City Police Officers John Doe,	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jewel Ortiz, (hereinafter referred to as "ORTIZ") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer John Migliaccio, Shield 25698 of PSA 7, (hereinafter referred to as "MIGLIACCIO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Mike Suarez, Shield 5841 of PSA 7, (hereinafter referred to as "SUAREZ") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about October 8, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been paid by the City of New York.

8. That on or about December 23, 2020 a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.

9. That on or about September 10, 2020 at approximately 10:00PM in the vicinity of 595 Trinity Avenue, Bronx, NY Plaintiff was in a car with a other people when they were unlawfully stopped and ordered to exit the car by MIGLIACCIO, SUAREZ and DOES.

10. That while MIGLIACCIO, SUAREZ and DOES searched Plaintiff and the other occupants of the car, a gun was found on the person of the driver.

11. That at no time was a gun recovered from inside of the car Plaintiff was in.

12. That at no time did Plaintiff knowingly possess a weapon.
13. That despite the above, Plaintiff was handcuffed and arrested.
14. That after Plaintiff was arrested she was transported to the PSA 7 precinct.
15. That after Plaintiff arrived at the PSA 7 precinct she was placed into a cell with other female prisoners.
16. That after Plaintiff arrived at the PSA 7 precinct she was strip searched and nothing illegal or unlawful was recovered.
17. That after being held for several hours at the PSA 7 precinct, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.
18. That on or about September 12, 2020 Plaintiff was arraigned in Bronx County Criminal Court on docket CR-012780-20BX charging her with Criminal Possession of Weapon and related offenses.
19. That at the time of her arraignment, Plaintiff was released on her own recognizance and ordered to return to court.
20. That on and between September 12, 2020 and September 25, 2020, the Office of the Bronx County District Attorney presented the case to the Grand Jury.
21. That Plaintiff did not testify in the Grand Jury.
22. That on or about September 25, 2020 the Grand Jury voted a No True Bill as to Plaintiff and the case against Plaintiff was dismissed.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

23. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 22, as if more fully stated herein at length.

24. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
26. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.
27. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
28. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.
29. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from school.
30. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.
32. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

33. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by claiming that Plaintiff was in possession of a weapon when they knew she was not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, MIGLIACCIO, SUAREZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MIGLIACCIO, SUAREZ and DOES committed within the scope of their employment. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MIGLIACCIO, SUAREZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. That City of New York and New York City Police Department were aware that SUAREZ was the subject of a false arrest lawsuit on case Wilson v. City of New York et al, index number 025712/2018 and despite such, continued to employ SUAREZ.

46. That City of New York and New York City Police Department were aware that SUAREZ was the subject of a false arrest lawsuit on case Brown v. City of New York et al, index number 030714-2017 and despite such, continued to employ SUAREZ.

47. That City of New York and New York City Police Department were aware that SUAREZ had seven (7) Civilian Complaint Review Board complaints against him; one (1) of which was substantiated by the Civilian Complaint Review Board, and yet, Defendants continued to employ SUAREZ.

48. That City of New York and New York City Police Department were aware that MIGLIACCIO had one (1) Civilian Complaint Review Board complaints against him and yet, Defendants continued to employ MIGLIACCIO.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

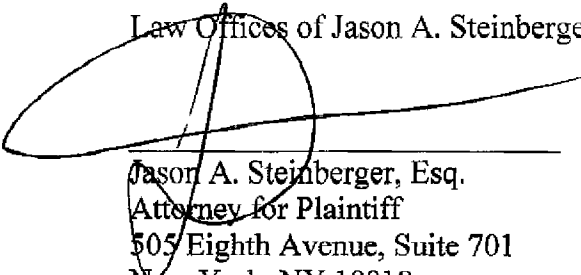
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

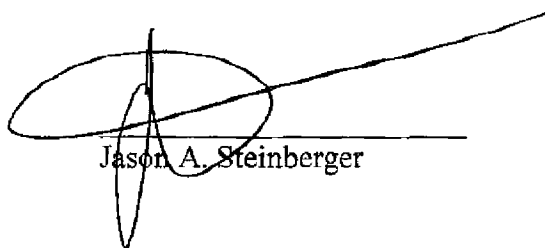


Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 11, 2021



Jason A. Steinberger